

There is no denying that the four core concepts are "loose." were they tightly constricting, however, would they not make many, if not most, commanders potential accused? The core principles attempt to find a balance between impunity and inaction. To see international duplicity in such an effort is wrong.

CASES AND MATERIALS

THE UNITED STATES V. WILHELM LIST, ET AL.

"The Hostage Case"

Trials of War Criminals before the Nuernberg Military Tribunals, vol. XI, 757 (1948)²¹⁴

Introduction. The case of Generaloberst (General) Lothar Rendulic is briefly discussed in this chapter's text. In 1944, he was Commander-in-Chief of German armed forces in Norway. Following the war's conclusion, Rendulic was one of the accused in The Hostage Case. His trial is one of the few that considers a commander's actions in relation to the concept of military necessity.

²¹² *Protocols Commentary*, at 620.

²¹³ Cassese, *Violence and Law in the Modern Age*, *supra*, note 122, at 17.

²¹⁴ *United States v. List*, *supra*, note 42, at 770, 836–9, 889, 1113, 1131–6, 1162, 1253–4, and 1295–7.

"Obviously, it is especially difficult to render convincing second opinions when assessing, after the fact, the necessity and economy of battlefield tactical decisions. Nevertheless, the very fact that military and civilian tacticians have been accountable to second opinions – for example, to the 'reasonable commander' test – must have some restraining effect on the choice of measures employed in battle."²¹⁵

These extracts are from the record of Rendulic's trial.

From Count two of the group indictment:

9.a. On or about 10 October 1944, the Commander in Chief of the 20th Mountain Army, the defendant Rendulic, issued an order to troops under his command and jurisdiction, for the complete destruction of all shelter and means of existence in, and the total evacuation of the entire civilian population of, the northern Norwegian province of Finnmark. During the months of October and November 1944, this order was effectively and ruthlessly carried out. For no compelling military reasons, and in literal execution of instructions to show no sympathy to the civilian population, the evacuated residents were made to witness the burning of their homes and possessions and the destruction of churches, public buildings, food supplies, barns, livestock, bridges, transport facilities, and natural resources of an area in which they and their families had lived for generations. Relatives and friends were separated, many of the evacuees became ill from cold and disease, hundreds died from exposure or perished at sea in the small boats and fishing smacks used in the evacuation, while still others were summarily shot for refusing to leave their homeland – in all, the thoroughness and brutality of this evacuation left some 61,000 men, women, and children homeless, starving and destitute.

From the opening statement of the Chief Prosecutor, Brigadier General Telford Taylor:

Late in October 1944, the German High Command... issued the following order to Rendulic...

"Because of the unwillingness of the northern Norwegian population to voluntarily evacuate, the Fuehrer has... ordered that the entire Norwegian population east of the fiord Lyngen be evacuated by force in the interest of their own security and that all homes are to be burned down or destroyed.

"[Rendulic] is responsible that the Fuehrer's order is carried out without consideration. Only by this method can it be prevented that the Russians with strong forces, and aided by these homes and the people familiar with the terrain, follow our withdrawal operations... This is not the place for sympathy for the civilian population.

"It must be made clear to the troops engaged in this action that the Norwegians will be thankful in a few months that they were saved from bolshevism..."

... This ruthless and in large part unnecessary decision was carried out by Rendulic's forces according to plan. Northern Norway, from Kirkenes nearly to Tromsø, was turned into an Arctic desert.

From the opening statement of Dr. Hans Laternser, one of the accuseds' defense counsel:

In the case of the measures with which the defendants here are being charged the principle of military necessity plays an important role. This principle, which formed the basis of all

²¹⁵ Thomas M. Franck, "On Proportionality of Countermeasures in International Law," 102-4 AJIL (Oct. 2008), 715, 765.

German military measures, was formulated in paragraph 4 of the American "Rules of Land Warfare"* as the highest general principle of warfare and recognized to a very far-reaching degree.

This principle, however, must not be scrutinized in an abstract manner, but must be considered in connection with the conditions with which the accused were confronted and under which they had to discharge their task... Nothing of what forms the subject of this trial can be understood if considered apart from the fundamentals, as is done by the prosecution.

From the testimony of the accused justifying the destruction carried out at his order, that portion offered here being only a small portion of his testimony:

Everybody [in the German forces] was aware of the difficulty of the position. From censorship of soldiers' mail we learned that the morale of the soldiers sometimes bordered on panic... There was a very dangerous crisis among the [German] soldiers especially with regard to confidence in their leaders which could have led to catastrophe... At first sight one might suppose that marching [pursuing Russian] troops would only need the localities along the march route for quarters, but that is not the case... The villages along the march route were never sufficient for the accommodation of the marching troops.

Instead, these troops also had to use those places which were a good distance away from the march route... when it was necessary to quarter them in houses, etc., and that would have undoubtedly been necessary at that time in Finmark because of the climate...

The inhabited localities along the coast and along the fjords were of the same significance... It further has to be considered that an army does not only march; it also has to live, especially when it is supposed to prepare an attack. Then the army is apt to spread over the whole country. Not only do the troops have to be accommodated but there are also many installations to be taken care of such as work shops, hospitals, depots, installations for supply, and for all these installations everything that was there concerning houses, etc., was necessary to accommodate all these operations and that was the military significance of the apparently far distant inhabited localities...

... You must not think that we destroyed wantonly or senselessly. Everything we did was dictated by the needs of the enemy. That was its necessity...

... I did not think it was absolutely necessary to transfer the population to other areas but I could not close my eyes to Hitler's reasons of military necessity. I could not deny that they were justified.

Finally, I had to tell myself that it would possibly be better for the population to be transferred to other areas rather than to spend the hard winter in the destroyed country. I participated in both winter battles in Russia. Therefore, I know what flight from cold means. I had to realize that the Russians, if they followed us... it was certain that they would not spare the population. Therefore, in the final analysis it was the best thing for the population that they were removed...

... I attached the greatest importance to good relations between myself and the Norwegian population. For this reason alone I insisted that the evacuation should not give any cause for misgivings among the population. You may also rest assured that if any kind of excesses had

* FM 27-10, Rules of Land Warfare (1 Oct. 1940), para. 4. "Basic Principles... a. The principle of military necessity, under which, subject to the principles of humanity and chivalry, a belligerent is justified in applying any amount and any kind of force to compel the complete submission of the enemy with the least possible expenditure of time, life, and money;"

become known to me, any unnecessary harshness or any inconsideration, I would have taken countermeasures immediately . . .

From the closing arguments of Mr. Walter Rapp, Associate Prosecution Counsel:

The argument of the defense of military necessity is unconvincing here for several reasons. In the first place . . . the plea of military necessity can never be used as a defense for the taking of an unarmed civilian's life . . .

In the second place, it is inconsistent to attempt to defend the same action by the plea of superior orders and also by that of military necessity because the two are mutually exclusive. If an act was committed solely because of superior orders, then presumably there was no military necessity for doing it; whereas if it was done because of military necessity, it would have been done anyhow regardless of the existence or nonexistence of superior orders.

In the third place, the defense of military necessity flies into the teeth of all the available evidence here . . .

From the Tribunal's opinion:

Military necessity has been invoked by the defendants as justifying . . . the destruction of villages and towns in the occupied territory . . . The destruction of property to be lawful must be imperatively demanded by the necessities of war . . . There must be some reasonable connection between the destruction of property and the overcoming of the enemy forces. It is lawful to destroy railways, lines of communication, or any other property that might be utilized by the enemy. Private homes and churches even may be destroyed if necessary for military operations. It does not admit the wanton devastation of a district or the willful infliction of suffering upon its inhabitants for the sake of suffering alone . . .

The evidence shows that the Russians had very excellent troops in pursuit of the Germans. Two or three land routes were open to them as well as landings by sea behind the German lines . . . The information obtained concerning the intentions of the Russians was limited . . . It was with this situation confronting him that he carried out the "scorched earth" policy in the Norwegian province of Finmark . . . The destruction was as complete as an efficient army could do it . . .

There is evidence in the record that there was no military necessity for this destruction and devastation. An examination of the facts in retrospect can well sustain this conclusion. But we are obliged to judge the situation as it appeared to the defendant at the time. If the facts were such as would justify the action by the exercise of judgment, after giving consideration to all the factors and existing possibilities, even though the conclusion reached may have been faulty, it cannot be said to be criminal. After giving careful consideration to all the evidence on the subject, we are convinced that the defendant cannot be held criminally responsible although when viewed in retrospect, the danger did not actually exist . . .

. . . We are not called upon to determine whether urgent military necessity for the devastation and destruction in the province of Finmark actually existed. We are concerned with the question whether the defendant at the time of its occurrence acted within the limits of honest judgment on the basis of the conditions prevailing at the time. The course of a military operation by the enemy is loaded with uncertainties . . . It is our considered opinion that the conditions, as they appeared to the defendant at the time, were sufficient upon which he could honestly conclude that urgent military necessity warranted the decision made. This being true, the defendant may have erred in the exercise of his judgment but he was guilty of no criminal act. We find the defendant not guilty of the charge.

Conclusion. Rendulic's testimony that the actions he ordered were actually for the benefit of the Norwegian populace, and that they would eventually be grateful that they were forced from their homes in wintertime and – if they managed to survive – were displaced to locations hundreds of miles away, is absurd, of course. As the opinion makes clear, however, the standard of guilt or innocence is the facts as they appeared to the accused at the time, given the circumstances at the time.

Although acquitted of the charge under Count two, Rendulic was found guilty of charges under Counts one, three, and four, relating to the murders of hostages. He was sentenced to twenty years imprisonment, with credit for seventeen months served awaiting trial and judgment. He actually served a few days less than three years.

The Rendulic standard remains unchanged. Fifty-four years later, in 2003, the ICTY wrote, "In determining whether an attack was proportionate it is necessary to examine whether a reasonably well-informed person in the circumstances of the actual perpetrator, making reasonable use of the information available to him or her, could have expected excessive civilian casualties to result from the attack."²¹⁶

SHIMODA ET AL. V. STATE²¹⁷

Tokyo District Court, December 7, 1963

355 Hanrei Jiho [Decisions Bulletin] 17

8 Japanese Annual of Int'l L. 231 (1964) (Citations to expert witnesses omitted.)

Introduction. "The rule against inflicting 'superfluous' casualties leaves unilluminated whether it is permissible to kill large numbers of civilians to achieve a necessary military objective (destroying enemy forces deliberately dispersed in a civilian neighborhood) or to bring a costly war to a speedier end (the nuclear bombing of Hiroshima and Nagasaki)."²¹⁸ A 1963 trial discussed the outlines of these questions.

The Shimoda case is the sole attempt by a court to assess the legality of the use of atomic weapons. Prior claims by survivors for monetary relief had been rejected by the city of Hiroshima although, under Japan's Atomic Survivor's Support Law, survivors are eligible for government-provided health care, up to \$1,260 per month in reparations, and funeral expenses.

The plaintiffs in this civil suit were Ryuichi Shimoda and four others, residents of Hiroshima or Nagasaki who had been injured in the atomic bombings of their cities. They sued Japan in lieu of the United States for their injuries, alleging that the bombings were unlawful and that Japan had wrongfully waived the claims for compensation of her citizens. The Japanese government defended that the bombings were not unlawful, stressing that, although many noncombatants were killed and injured, the bombings brought about the surrender of Japan, preventing many other casualties on both sides.

The Court found for the defendant, Japan, on other grounds. It did rule that the bombings were unlawful, however, focusing on whether there were appropriate military objectives in Hiroshima and Nagasaki that justified the noncombatant deaths and injuries. As you read this extract from the Court's opinion, note the references to all four core LOAC principles.

²¹⁶ Prosecutor v. Galić, supra, note 9, at para. 58.

²¹⁷ Available at: <http://www.icrc.org/ihl-nat.nsf/46707c419d6bdfa24125673e00508145/aa559087dbcf1af5c1256a1c0029f14d?OpenDocument>.

²¹⁸ Franck, "On Proportionality of Countermeasures in International Law," supra, note 215, at 766.

2. International law aspects.

(1) There is no doubt that, whether or not an atomic bomb having such a character and effect is a weapon which is permitted in international law as a so-called nuclear weapon, is an important and very difficult question in international law. In this case, however, the point at issue is whether the acts of atomic bombing of Hiroshima and Nagasaki by the United States are regarded as illegal by positive international law at that time. . . .

(3) . . . [T]he defendant State alleges that the question of violation of positive international law does not arise, since there was neither international customary law nor treaty law prohibiting the use of atomic bombs at that time, and the use is not prohibited clearly by positive international law. Of course, it is right that the use of a new weapon is legal, as long as international law does not prohibit it. However . . . from the interpretation and analogical application of existing international laws and regulations . . . the prohibition includes also the case where . . . the use of a new weapon is admitted to be contrary to the principles [of international law].

(4) . . . It is right and proper that any weapon contrary to the custom of civilized countries and to the principles of international law, should be prohibited even if there is no express provision in the laws and regulations . . . Although there are always many objections in every field against the invention and use of new weapons. They are soon regarded as advanced weapons, and the prohibition of the use of such weapons becomes altogether nonsensical. With the progress of civilization, a new weapon comes to be rather an efficient means of injuring the enemy. This is shown in history, and the atomic bomb is not an exception . . . This, however, is not always true. This will be clear from the recollection of the existence of the above-mentioned treaties prohibiting the use of dum-dum bullets and poisonous gases. Therefore, we cannot regard a weapon as legal only because it is a new weapon, and it is still right that a new weapon must be exposed to the examination of positive international law.

(5) . . . Against the defended city and place, indiscriminate bombardment is permitted, while in the case of an undefended city and place, bombardment is permitted only against combatant and military installations (military objectives) and bombardment is not permitted against non-combatant and non-military installations (non-military objectives). Any contrary bombardment is necessarily regarded as an illegal act of hostility. . . .

(6) With regard to air warfare, there are "Draft Rules of Air Warfare." Article 24 of the Draft Rules provides that: "(1) Aerial bombardment is legitimate only when directed at a military objective, that is to say, an object of which the destruction or injury would constitute a distinct military advantage to the belligerent. (2) Such bombardment is legitimate only when directed exclusively at the following objectives: military forces; military works; military establishments or depots; factories constituting important and well-known centers engaged in the manufacture of arms, ammunition, or distinctively military supplies; lines of communication or transportation used for military purposes. (3) The bombardment of cities, towns, villages, dwellings, or buildings not in the immediate neighborhood of the operations of land forces is prohibited. In cases where the objectives specified in paragraph (2) are so situated that they cannot be bombarded without the indiscriminate bombardment of the civilian population, the aircraft must abstain from bombardment. (4) In the immediate neighborhood of the operations of land forces, the bombardment of cities, towns, villages, dwellings, or buildings is legitimate, provided there exists a reasonable presumption that the military concentration is

sufficiently important to justify such bombardment, having regard to the danger thus caused to the civilian population. . . . Further, Article 22 provides that "aerial bombardment for the purpose of terrorizing the civilian population, of destroying or damaging private property not of military character, or of injuring non-combatants, is prohibited." In other words, these Draft Rules of Air Warfare prohibit useless aerial bombardment and provide for the principle of military objective first of all. . . . The Draft Rules of Air Warfare cannot directly be called positive law, since they have not yet become effective as a treaty. However, international jurists regard the Draft Rules as authoritative with regard to air warfare. . . . Therefore, we can safely say that the prohibition of indiscriminate aerial bombardment on an undefended city and the principle of military objective, which are provided for by the Draft Rules, are international customary law. . . .

(7) Then, what is the distinction between a defended city and an undefended city? Generally speaking, a defended city is a city resisting any possible occupation attempt by land forces. A city which is far distant from the battlefield, and is not in pressing danger of the enemy's occupation, even if there exists defensive installations or armed forces, cannot be said to be a defended city, since there is no military necessity of indiscriminate bombardment. . . . On the contrary, against a city resisting a possible occupation attempt by the enemy, indiscriminate bombardment is permitted out of military necessity, since an attack made upon the distinction between military objective and non-military objective has little military effect and cannot accomplish the expected purposes. Thus, we can say that it is a long-standing, generally recognized principle in international law respecting air raids, that indiscriminate aerial bombardment is not permitted on an undefended city and that only aerial bombardment on military objectives is permitted. Of course, it is naturally anticipated that the aerial bombardment of a military objective is attended with the destruction of non-military objectives or casualty of non-combatants; and this is not illegal if it is an inevitable result accompanying the aerial bombardment of a military objective. However, it necessarily follows that in an undefended city, an aerial bombardment directed at a non-military objective, and an aerial bombardment without distinction between military objectives and non-military objectives (the so-called blind aerial bombardment) is not permitted in light of the above-mentioned principle. . . .

(8) It is a well-known fact that Hiroshima and Nagasaki were not cities resisting a possible occupation attempt by land forces at that time. Further, it is clear as stated above that both cities did not come within the purview of the defended city, since they were not in the pressing danger of an enemy's occupation, even if both cities were defended with anti-aircraft guns, etc. against air raids and had military installations. Also, it is clear that some 330,000 civilians in Hiroshima and some 270,000 civilians in Nagasaki maintained homes there, even though there were so-called military objectives such as armed forces, military installations, and munitions factories in both cities. Therefore, since an aerial bombardment with an atomic bomb brings the same result as a blind aerial bombardment from the tremendous power of destruction, even if the aerial bombardment has only a military objective as the target of its attack, it is proper to understand that an aerial bombardment with an atomic bomb on both cities of Hiroshima and Nagasaki was an illegal act of hostility as the indiscriminate aerial bombardment of undefended cities.

(9) Against the above conclusion, there is a counter-argument that the war of the day was the so-called total war, in which it was difficult to distinguish between combatant and non-combatant, and between military objective and non-military objective, and that the principle

of military objective was not necessarily carried through during World War II. . . . [H]owever, we cannot say that the distinction between military objective and non-military objective has gone out of existence. For example, schools, churches, temples, shrines, hospitals and private houses cannot be military objectives, however total the war may be. If we understand the concept of total war to mean that all people who belong to a belligerent are more or less combatant, and all production means production injuring the enemy, there arises the necessity to destroy the whole people and all the property of the enemy; and it becomes nonsensical to distinguish between military objective and non-military objective. . . . The concept of total war is not advocated in such a vague meaning as stated above, and there was no actual example of such situation. Accordingly, it is wrong to say that the distinction between military objective and non-military objective has gone out of existence because of total war.

(10) During World War II, aerial bombardment was once made on the whole place where military objectives were concentrated, because it was impossible to confirm an individual military objective and attack it where munitions factories and military installations were concentrated in comparatively narrow places, and where defensive installations against air raids were very strong and solid; and there is an opinion regarding this as legal. . . . However, the legal principle of the aerial bombardment on an objective zone cannot apply to the city of Hiroshima and the city of Nagasaki, since it is clear that both cities could not be said to be places where such military objectives concentrate.

(11) Besides, the atomic bombing on both cities of Hiroshima and Nagasaki is regarded as contrary to the principles of international law that the means which give unnecessary pain in war and inhumane means are prohibited as means of injuring the enemy. In the argument of this point, it goes without saying that such an easy analogy that the atomic bomb is necessarily prohibited since it has characteristics different from former weapons in the inhumanity of its efficiency, is not admitted. For international law respecting war is not formed only by humane feelings, but it has as its basis both military necessity and efficiency and humane feelings, and is formed by weighing these two factors. . . . On the other hand, however great the inhumane result of the use of a weapon may be, the use of the weapon is not prohibited by international law, if it has a great military efficiency. The issues in this sense are whether atomic bombing comes within the purview of "the employment of poison or poisonous weapons" prohibited by article 23(a) of the [1907] Hague Regulations respecting war on land. . . . With regard to this point, there is not an established theory among international jurists in connection with the difference of poison, poison-gas, bacterium, etc. from atomic bombs. However, judging from the fact that the St. Petersburg Declaration declares that " . . . considering that the use of a weapon which increases uselessly the pain of people who are already placed out of battle and causes their deaths necessarily is beyond the scope of this purpose, and considering that the use of such a weapon is thus contrary to humanity . . . " and that article 23(e) of the Hague Regulations respecting war on land prohibits "the employment of such arms, projectiles, and material as cause unnecessary injury," we can safely see that besides poison, poison-gas and bacterium the use of the means of injuring the enemy which causes at least the same or more injury is prohibited by international law. The destructive power of the atomic bomb is tremendous, but it is doubtful whether atomic bombing really had an appropriate military effect at that time and whether it was necessary. . . . In this sense, it is not too much to say that the pain brought by the atomic bombs is severer than that from poison and poison-gas, and we can say that the act of dropping such a cruel bomb is contrary to the fundamental principle of the laws of war that unnecessary pain must not be given.

4. Claims for damages of the sufferers.

(4) The plaintiffs allege that an individual has a claim in international law, since the right of the individual is exercised by the home government. However, if the purport is that the state exercise the right in international law in the citizen's name as his agent for his sake, there is no such example in international law and there is no reason in international law to recognize this. . . .

(5) As understood from the above, there is no general way open to an individual who suffers damages from an illegal act of hostility in international law, to claim damages. . . .

5. Waiver of claims.

(2) Article 19(a) of the Peace Treaty between the Allied Powers and Japan . . . provides that: "Japan waives all claims of Japan and its nationals against the Allied Powers and their nationals arising out of the war or out of actions taken because of the existence of a state of war . . . Accordingly, claims for compensation for damages caused to Japan by illegal acts of hostility, for example, are necessarily included. . . .

(7) Conclusion.

For the above reasons, the plaintiffs' claims in this suit are ruled improper . . . and we can only dismiss the plaintiffs' claims on the merits. . . .

Conclusion. Reading the Court's opinion, one is reminded of American author Paul Fussell, author of *The Great War and Modern Memory* (1975). In World War II, he was badly wounded in European combat and, upon recovery, was scheduled to participate in the invasion of Japan. The atom bombs cancelled those plans. Fussell quotes a friend who said, "[T]hose for whom the use of the A-bomb was 'wrong' seem to be implying 'that it would have been better to allow thousands on thousands of American and Japanese infantrymen to die in honest hand-to-hand combat on the beaches than to drop those two bombs.' People holding such views, he notes, 'do not come from the ranks of society that produce infantrymen or pilots.'"²¹⁹ Fussell also addresses the purported imminent Japanese surrender: "But at that time, with no indication that surrender was on the way, the kamikazes were sinking American vessels . . . and Allied casualties were running to over 7,000 per week . . . Two weeks more means 14,000 more killed and wounded, three weeks more, 21,000. Those weeks mean the world if you're one of those thousands or related to one of them. . . . In general, the principle is, the farther from the scene of horror, the easier the talk."²²⁰

Fussell's viewpoint is not that of Geneva. Students of the law, however sympathetic, sometimes must take a longer, less personal view of *jus in bello* issues. As human beings, we also remember that armed conflict is more than rules and court cases.

If Japan, with its World War II record of law of war violations, had the atomic bomb, would she have used it on the United States? When examining the lawfulness of its use by the United States, does Japan's law of war record matter? Would employment of the hydrogen bomb against an enemy raise and exacerbate the same issues? The atom bombing of Hiroshima and Nagasaki

²¹⁹ Paul Fussell, *Thank God for the Atom Bomb and Other Essays* (New York: Summit Books, 1988), 14-15.
²²⁰ *Id.*, 18-19.

remains not only a significant LOAC/IHL issue, but an emotional and moral issue not likely to be settled soon.

Today, there still is no multinational treaty banning the use of nuclear weapons.

KUPREŠKIĆ AND OTHERS

IT-95-16-T (14 January 2000). Citations omitted.

Introduction. The ICTY sometimes provides LOAC/IHL tutorial dicta, as in this account of distinction. The Trial Chamber's opinion sheds welcome light on issues related to distinction, such as the loss of civilian immunity and civilian objects' immunity.

521. The protection of civilians in time of armed conflict, whether international or internal, is the bedrock of modern humanitarian law. In 1938, the Assembly of the League of Nations, echoing an important statement made with reference to Spain, in the House of Commons
by Mr. ... resolution concerning the

attacks, all of which are unlawful, it might be warranted. The subject of such acts entails that they may not be in keeping with international law. Indeed, this pattern of military conduct may turn out to jeopardize excessively the lives and assets of civilians, contrary to the demands of humanity.

Conclusion. As basic and long-standing as the concept of distinction is, international tribunals and domestic courts regularly deal with its violation. This opinion relates distinction to the Martens Clause (Chapter 2, sections 2.7.1 and 2.7.5), as well as to customary law.

PROSECUTOR V. KUNARAC, ET AL.

IT-96-23 & 23/1-T (22 February 2001) Citations omitted

Introduction. In the Kunarac opinion, the ICTY Trial Chamber examines the core concept of distinction and proportionality through an examination of an attack on a civilian town, and determines what acts must be committed to constitute the grave breach of attacking a civilian population. (Additional Protocol I, Article 85.3.) The Trial Chamber's opinion confirms that such an attack may be a grave breach and a crime against humanity, as well.

3. The attack must be "directed against any civilian population" [to constitute the offense]

421. The expression "directed against" specifies that in the context of a crime against humanity, the civilian population is the primary object of the attack.

422. The desire to exclude isolated or random acts from the scope of crimes against humanity led to the inclusion [in the International Law Commission's 1991 report, *Systematic or Mass Violations of Human Rights*] of the requirement that the acts be directed against a civilian "population". In the words of the Trial Chamber in the Tadic case, the expression "directed against any civilian population" ensures that generally, the attack will not consist of one particular act but of a course of conduct.

423. The protection of Article 5 [of the ICTY Statute] extends to "any" civilian population including, if a state takes part in the attack, that state's population. It is therefore unnecessary to demonstrate that the victims are linked to any particular side of the conflict.

424. The expression "population" does not mean that the *entire* population of the geographical entity in which the attack is taking place (a state, a municipality or another circumscribed area) must be subject to the attack.

425. The "civilian population" comprises... all persons who are civilians as opposed to members of the armed forces and other legitimate combatants. The targeted population must be of a predominantly civilian nature. However, the presence of certain non-civilians in its midst does not change the character of the population.

426. Individually, a person shall be considered to be a civilian for as long as there is a doubt to his or her status. As a group, the civilian population shall never be attacked as such. Additionally, customary international law obliges parties to the conflict to distinguish at all times between the civilian population and combatants, and obliges them not to attack a military objective if the attack is likely to cause civilian casualties or damage which would be excessive in relation to the military advantage anticipated.

427. The attack must be either "widespread" or "systematic", thereby excluding isolated and random acts.

428. The adjective "widespread" connotes the large-scale nature of the attack and the number of its victims...

429. The adjective "systematic" signifies the organized nature of the acts of violence and the improbability of their random occurrence. Patterns of crimes – that is the non-accidental repetition of similar criminal conduct on a regular basis – are a common expression of such systematic occurrence.

430. The widespread or systematic nature of the attack is essentially a relative notion. The Trial Chamber must first identify the population which is the object of the attack and, in light of the means, methods, resources and result of the attack upon the population, ascertain whether the attack was indeed widespread or systematic.

431. Only the attack, not the individual acts of the accused, must be "widespread" or "systematic". A single act could therefore be regarded as a crime against humanity if it takes place in the relevant context:

For example, the act of denouncing a Jewish neighbor to the Nazi authorities – if committed against a background of widespread persecution – has been regarded as amounting to a crime against humanity. An *isolated act*, however – i.e. an atrocity which did not occur within such a context – cannot.

4. The mental element: the perpetrator knows of the broader criminal context in which his acts occur

433. The Appeals Chamber in the *Tadić* case made it clear that the motives of the accused for taking part in the attack are irrelevant and that a crime against humanity may be committed for purely personal reasons.

434. In addition to the intent to commit the underlying offence, the perpetrator needs to know that there is an attack on the civilian population and that his acts comprise part of the attack, or at least to take the risk that his act is part of the attack. This, however, does not entail knowledge of the details of the attack.

435. Finally... Article 5 of the statute protects civilians as opposed to members of the armed forces and other legitimate combatants, but the Prosecution does not need to prove that the accused chose his victims for their civilian status. However, and as a minimum, the perpetrator must have known or considered the possibility that the victim of his crime was a civilian. The Trial Chamber stresses that, in case of doubt as to whether a person is a civilian, that person shall be considered to be a civilian. The Prosecution must show that the perpetrator could not reasonably have believed that the victim was a member of the armed forces.

The judgment is admirable for the clarity with which it enunciates the elements necessary to constitute the war crime and crime against humanity, in ICTY jurisprudence, of attacking civilians, a basic violation of the core concept of distinction.

PROSECUTOR V. GALIĆ

IT-98-29-T (5 December 2003). Citations omitted.

Introduction. The ICTY's Galić opinion also offers a clear explanation of the grave breach and crime against humanity of disregarding distinction in attacking civilians, going into finer detail than previous cases, and including discussion of disproportionate attacks, and their required mental elements.

42. The constitutive elements of the offence of attack on civilians have not yet been the subject of a definitive statement of the Appeals Chamber... In the *Blaskić* case the Trial Chamber observed in relation to the *actus reus* that "the attack must have caused deaths and/or serious bodily injury within the civilian population or damage to civilian property... Targeting civilians or civilian property is an offense when not justified by military necessity." On the *mens rea* it found that "such an attack must have been conducted intentionally in the knowledge... that civilians or civilian property were being targeted not through military necessity." The Trial Chamber in the *Kordić and Cerkez* case held that "prohibited attacks are those launched deliberately against civilians or civilian objects in the course of an armed conflict and are not justified by military necessity. They must have caused deaths and/or serious bodily injuries..."

43. The question remains whether attacks resulting in non-serious civilian casualties, or in no casualties at all, may also entail the individual criminal responsibility of the perpetrator... even though they do not amount to grave breaches of Additional Protocol I.

44. The Trial Chamber does not however subscribe to the view that the prohibited conduct set out in the first part of Article 51(2) of Additional Protocol I is adequately described [in the *Blaskić* and *Kordić* cases] as "targeting civilians when not justified by military necessity" ... [Article 51(2)] does not mention any exceptions. In particular it does not contemplate derogating from this rule by invoking military necessity.
45. The Trial Chamber recalls that the provision in question explicitly confirms the customary rule that civilians must enjoy general protection against the danger arising from hostilities. The prohibition against attacking civilians stems from a fundamental principle of international humanitarian law, the principle of distinction, which obliges warring parties to distinguish *at all times* between the civilian population and combatants ...
47. ... Article 51(2) of Additional Protocol I proscribes making the civilian population as such, or individual civilians, the object of attack. According to Article 50 ... "a civilian is any person who does not belong to one of the categories of persons referred to in Article 4(A)(1), (2), (3) and (6) of the Third Geneva Convention and in Article 43 of Additional Protocol I." ... [T]he term "civilian" is defined negatively as anyone who is not a member of the armed forces or of an organized military group belonging to a party to the conflict. It is a matter of evidence in each particular case to determine whether an individual has the status of civilian.
48. The protection from attack afforded to individual civilians by Article 51 ... is suspended when and for such time as they directly participate in hostilities. To take a "direct" part in hostilities means acts of war which by their nature or purpose are likely to cause actual harm to the personnel or matériel of the enemy armed forces ... Combatants and other individuals directly engaged in hostilities are considered to be legitimate military targets.
50. The presence of individual combatants within the population does not change its civilian character. In order to promote the protection of civilians, combatants are under the obligation to distinguish themselves at all times from the civilian population; the generally accepted practice is that they do so by wearing uniforms, or at least a distinctive sign, and by carrying their weapons openly. In certain situations it may be difficult to ascertain the status of particular persons in the population. The clothing, activity, age, or sex of a person are among the factors which may be considered in deciding whether he or she is a civilian. A person shall be considered to be a civilian for as long as there is a doubt as to his or her real status ...
51. ... [I]n accordance with the principles of distinction and protection of the civilian population, only military objectives may be lawfully attacked. A widely accepted definition of military objectives is given by Article 52 of Additional Protocol I as "those objects which by their nature, location, purpose or use make an effective contribution to military action and whose total or partial destruction, capture or neutralization, in the circumstances ruling at the time, offers a definite military advantage". In case of doubt as to whether an object which is normally dedicated to civilian purposes is being used to make an effective contribution to military action, it shall be presumed not to be so used ...
54. The Trial Chamber will now consider the mental element of the offense on civilians ... Article 85 of Additional Protocol I explains the intent required for the application of the first part of Article 51(2). It expressly qualifies as a grave breach the act of *wilfully* "making the civilian population or individual civilians the object of attack". The Commentary to Article 85 [at para. 3474] of Additional Protocol I explains the term [wilfully] ... The Trial Chamber accepts this explanation, according to which the notion of "wilfully" incorporates

the concept of recklessness, whilst excluding mere negligence. The perpetrator who recklessly attacks civilians acts "wilfully".

55. For the *mens rea* recognized by Additional Protocol I to be proven, the Prosecution must show that the perpetrator was aware or should have been aware of the civilian status of the persons attacked. In case of doubt as to the status of a person, that person shall be considered to be a civilian. However, in such cases, the Prosecution must show that in the given circumstances a reasonable person could not have believed that the individual he or she attacked was a combatant.

57. ... [I]ndiscriminate attacks, that is to say, attacks which strike civilians or civilian objects and military objectives without distinction, may qualify as direct attacks against civilians. It notes that indiscriminate attacks are expressly prohibited by Additional Protocol I. This prohibition reflects a well-established rule of customary law applicable in all armed conflicts.

58. One type of indiscriminate attack violates the principle of proportionality. The practical application of the principle of distinction requires that those who plan or launch an attack will take all feasible precautions to verify that the objectives attacked are neither civilians nor civilian objects, so as to spare civilians as much as possible. Once the military character of a target has been ascertained, commanders must consider whether striking this target is "expected to cause incidental loss of life, injury to civilians, damage to civilian objectives or a combination thereof, which would be excessive in relation to the concrete and direct military advantage anticipated." If such casualties are expected to result, the attack should not be pursued. The basic obligation to spare civilians and civilian objects as much as possible must guide the attacking party when considering the proportionality of an attack. In determining whether an attack was proportionate it is necessary to examine whether a reasonably well-informed person in the circumstances of the actual perpetrator, making reasonable use of the information available to him or her, could have expected excessive civilian casualties to result from the attack.

59. To establish the *mens rea* of a disproportionate attack the Prosecution must prove, instead of the above-mentioned *mens rea* requirement, that the attack was launched wilfully and in knowledge of circumstances giving rise to the expectation of excessive civilian casualties.

60. The Trial Chamber considers that certain apparently disproportionate attacks may give rise to the inference that civilians were actually the object of attack. This is to be determined on a case-by-case basis in light of the available evidence.

61. ... [T]he parties to a conflict are under an obligation to remove civilians, to the maximum extent feasible from the vicinity of military objectives and to avoid locating military objectives within or near densely populated areas. However, the failure of a party to abide by this obligation does not relieve the attacking side of its duty to abide by the principles of distinction when launching an attack.